

**BEFORE THE
FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

GLOBAL KINGS LOGISTICS /
KAMORDEEN A. GANIU,

Complainant,

DOCKET NO. 26-09

v.

MEDITERRANEAN SHIPPING COMPANY
(USA) INC.,

Respondent.

**COMPLAINANT'S OPPOSITION TO RESPONDENT'S MOTION TO DISMISS,
ALTERNATIVE MOTION FOR LEAVE TO AMEND, AND REQUEST FOR LIMITED
JURISDICTIONAL DISCOVERY**

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TABLE OF AUTHORITIES

Cases

- Ashcroft v. Iqbal, 556 U.S. 662 (2009)
- Bell Atlantic Corp. v. Twombly, 550 U.S. 544 (2007)
- Caterpillar Overseas S.A. v. South African Marine Corp. (N.Y.), 19 F.M.C. 315 (ALJ 1976)
- Director, Office of Workers' Compensation Programs v. Greenwich Collieries, 512 U.S. 267 (1994)
- FC Investment Group LC v. IFX Markets, Ltd., 529 F.3d 1087 (D.C. Cir. 2008)
- Foman v. Davis, 371 U.S. 178 (1962)
- GTE New Media Services Inc. v. BellSouth Corp., 199 F.3d 1343 (D.C. Cir. 2000)
- Maher Terminals v. Port Authority of New York and New Jersey, Docket No. 08-03, 2014 WL 9966245 (FMC 2014)
- MAVL Capital v. Marine Transport Logistics, 2 F.M.C.2d 198, 2020 WL 13512925 (FMC 2020)
- Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., 32 S.R.R. 126 (FMC 2011)
- Puerto Rico Maritime Shipping Authority and Puerto Rico Marine Management, Inc./Puerto Marine Operating Co., Inc., 21 F.M.C. 626 (FMC 1979)
- TCW, Inc. v. Evergreen Shipping Agency (America) Corp., FMC Docket No. 1966(I)
- Trane Company v. South African Marine Corp. (N.Y.), 19 F.M.C. 375 (ALJ 1976)

Statutes, Regulations, and Rules

- 5 U.S.C. section 556(d)
- 46 U.S.C. section 41102(c)
- 46 U.S.C. section 41104(a)(14)-(15), (d), (f)
- 46 U.S.C. section 41301
- 46 U.S.C. section 41310
- 46 C.F.R. section 502.12
- 46 C.F.R. section 502.62(a)(3)(ii)
- 46 C.F.R. section 502.66
- 46 C.F.R. section 502.69
- 46 C.F.R. section 502.141
- 46 C.F.R. Part 545
- Federal Rule of Civil Procedure 15(a), (c)
- Interpretive Rule on Demurrage and Detention Under the Shipping Act, 85 Fed. Reg. 29,638 (May 18, 2020)

PRELIMINARY STATEMENT

Complainant Global Kings Logistics / Kamordeen A. Ganiu ("Complainant"), appearing pro se, respectfully submits this Opposition to Respondent Mediterranean Shipping Company (USA) Inc.'s ("MSC USA" or "Respondent") Motion to Dismiss and, in the alternative, moves for leave to amend and for limited jurisdictional discovery.

MSC USA asks the Federal Maritime Commission to dismiss this proceeding with prejudice before an answer, before discovery, and before the parties have developed the facts concerning which MSC entity issued or transmitted the shipping documents, generated the invoices and account statements, demanded payment, directed collection, and prosecuted related litigation concerning the same disputed charges. That is not a proper use of a motion to dismiss.

Respondent's primary argument is not that the challenged charges were lawful or reasonable. Instead, MSC USA attempts to avoid the proceeding by characterizing itself as merely an agent of another MSC carrier entity. But Complainant's allegations, declaration, and documentary record show that MSC USA was the MSC entity with which Complainant dealt in the transaction and dispute. MSC USA handled or transmitted shipping documentation, issued, transmitted, or relied upon invoices and account statements, demanded payment, pursued collection, and participated in related New York litigation against Complainant. Ganiu Decl. paragraphs 2-10; Ex. A at GKL-EXA-001; Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001.

This factual posture materially distinguishes the passive-agent theory on which Respondent relies. MSC USA cannot affirmatively act as the MSC entity for billing, payment demands, collection, and litigation, then obtain dismissal with prejudice by invoking an agency label before discovery. At minimum, MSC USA's role, authority, relationship with the

carrier/principal, control over billing, and role in collection are factual issues requiring discovery.

If the Presiding Officer concludes that another MSC carrier entity should be added or substituted, dismissal with prejudice is still not the proper remedy. The proper remedy is leave to amend under 46 C.F.R. section 502.66 and the liberal amendment principles reflected in Federal Rule of Civil Procedure 15. If the Presiding Officer concludes that the present record is insufficient to determine MSC USA's role, the proper remedy is limited jurisdictional discovery directed to MSC USA's agency authority, billing authority, collection authority, relationship with the carrier/principal, and participation in the New York litigation.

STATEMENT OF ISSUES

1. Whether MSC USA has shown, on the pleadings alone, that it is so disconnected from the disputed shipment, invoices, payment demands, collection activity, and related New York litigation that the Complaint must be dismissed with prejudice.
2. Whether MSC USA's reliance on older agency cases warrants dismissal with prejudice where Complainant alleges and declares that MSC USA itself participated in the billing, collection, and litigation conduct at issue.
3. Whether MSC USA's prior and current conduct - including document handling, invoicing, demanding payment, pursuing collection, and participating in related litigation - makes its passive-agent position unsuitable for resolution on a motion to dismiss.
4. Whether Counts II, III, and IV should be dismissed with prejudice, or whether any pleading clarification should be addressed through amendment.
5. Whether, in the alternative, Complainant should be granted leave to amend and/or limited jurisdictional discovery concerning the identity and role of the proper MSC entity.

EXHIBIT INDEX AND PINPOINT RECORD CITATIONS

The following exhibit index is used for pinpoint record citations in this Opposition and in the accompanying declaration. The exhibit appendix should be assembled and Bates-labeled consistently with this index before filing. If any exhibit has already been filed with the original Complaint, Complainant may cite the original Complaint exhibit designation in addition to the Bates label below.

Exhibit	Description	Bates / Page Pinpoint	Purpose
A	Bills of lading and shipping documentation received, transmitted, handled, or relied upon by MSC USA	GKL-EXA-001 et seq.	Operational role / document handling / carrier identity
B	MSC invoices and account statements for demurrage, detention, storage, administrative fees, or related charges	GKL-EXB-001 et seq.	Billing role / charge assessment / statutory invoice issues
C	MSC payment demands, collection correspondence, account collection emails, or demand letters	GKL-EXC-001 et seq.	Demand and collection conduct
D	New York litigation pleadings, docket entries, collection pleadings, judgment papers, or related court documents	GKL-EXD-001 et seq.	MSC USA litigation position and collection conduct
E	Initial Order served June 15, 2026	GKL-EXE-001 to GKL-EXE-009	Procedural posture; discovery/mediation/order schedule
F	Order Designating Administrative Law Judge served June 15, 2026	GKL-EXF-001	Assignment to Chief ALJ Erin M. Wirth
G	Respondent's Motion to Dismiss dated July 3, 2026	GKL-EXG-001 to GKL-EXG-002	Relief sought and certificate of service

H	Respondent's Memorandum in Support of Motion to Dismiss dated July 3, 2026	GKL-EXH-001 to GKL-EXH-005	Respondent's agent theory, cited cases, Part 545/OSRA arguments
I	Respondent's Notice of Appearance dated July 3, 2026	GKL-EXI-001 to GKL-EXI-003	Respondent's counsel and service addresses

The citations in the factual sections below use these exhibit labels. For example, the bills of lading are cited as Ex. A at GKL-EXA-001, invoices as Ex. B at GKL-EXB-001, and collection demands as Ex. C at GKL-EXC-001.

FACTUAL AND PROCEDURAL BACKGROUND

The dispute arises from MSC-related charges and practices connected to an international ocean shipment, including demurrage, detention, storage, account statements, payment demands, collection efforts, and related litigation. Complainant alleges that the charges were improperly assessed, inadequately supported, and improperly pursued. The bills of lading and shipping documents are identified in Exhibit A. Invoices and account statements are identified in Exhibit B. Payment demands and collection correspondence are identified in Exhibit C. The related New York litigation documents are identified in Exhibit D.

MSC USA was not a stranger to the challenged conduct. Complainant dealt with MSC USA as the operative MSC entity in connection with the shipment and the dispute. MSC USA handled, transmitted, communicated, or relied upon shipping documentation; issued, transmitted, or relied upon invoices and account statements; demanded payment; pursued collection; and participated in the New York litigation concerning the same or related charges. Ganiu Decl. paragraphs 2-10; Ex. A at GKL-EXA-001; Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001.

Respondent does not meaningfully address the merits of the alleged billing and collection practices in its motion. Instead, it seeks dismissal on the threshold theory that MSC USA is merely an agent and therefore not subject to the Shipping Act in this proceeding. Resp. Mot. at 1; Resp. Mem. at 2-3; Ex. G at GKL-EXG-001; Ex. H at GKL-EXH-002 to GKL-EXH-003. Respondent's argument depends on disputed facts that are principally within MSC's possession.

The identity of the proper MSC respondent, MSC USA's agency authority, its role in generating or transmitting invoices, its collection authority, and its relationship to the carrier/principal are factual issues that should be tested through discovery, not resolved conclusively on a motion to dismiss with prejudice.

The procedural posture also weighs against dismissal. The Office of Administrative Law Judges issued an Initial Order establishing a formal adjudicatory framework and anticipating an answer, discovery, a joint status report, and CADRS mediation consultation. Initial Order at 1-2; Ex. E at GKL-EXE-001 to GKL-EXE-002. The Order Designating Administrative Law Judge assigned Chief Administrative Law Judge Erin M. Wirth to preside. Ex. F at GKL-EXF-001.

Key Timeline

Event	Record Citation / Relevance
Shipment / shipping documentation	MSC USA handled, transmitted, communicated, or relied upon bills of lading or related shipping documentation. Ganiu Decl. paragraph 3; Ex. A at GKL-EXA-001.
Billing / account statements	MSC USA issued, transmitted, or relied upon invoices/account statements for demurrage, detention, storage, administrative fees, or related charges. Ganiu Decl. paragraph 4; Ex. B at GKL-EXB-001.
Payment demands / collection activity	MSC USA demanded payment and pursued collection of disputed amounts. Ganiu Decl. paragraph 5; Ex. C at GKL-EXC-001.
Related New York litigation	MSC USA participated in related New York litigation concerning the same or related charges. Ganiu Decl.

paragraph 6; Ex. D at GKL-EXD-001.

FMC Initial Order

The Initial Order contemplated answer, discovery, scheduling, mediation consultation, and merits development. Ex. E at GKL-EXE-001 to GKL-EXE-002.

Motion to Dismiss

MSC USA moved to dismiss with prejudice before answering, relying primarily on passive-agent and pleading-defect theories. Ex. G at GKL-EXG-001; Ex. H at GKL-EXH-002 to GKL-EXH-005.

STANDARD OF REVIEW

Respondent invokes dismissal principles analogous to Federal Rules of Civil Procedure 12(b)(2) and 12(b)(6) through Commission practice. The Commission may look to the Federal Rules where they are not inconsistent with FMC rules or sound administrative practice. See 46 C.F.R. section 502.12; MAVL Capital v. Marine Transport Logistics, 2 F.M.C.2d 198, 2020 WL 13512925 (FMC 2020); Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., 32 S.R.R. 126 (FMC 2011). Motions practice is governed by 46 C.F.R. section 502.69.

A motion to dismiss tests the sufficiency of the pleadings and is not the proper vehicle for resolving contested facts. Under the pleading standard invoked by Respondent, the question is whether the factual allegations plausibly support relief. See Bell Atlantic Corp. v. Twombly, 550 U.S. 544 (2007); Ashcroft v. Iqbal, 556 U.S. 662 (2009). The Presiding Officer should accept well-pleaded factual allegations as true and draw reasonable inferences in favor of Complainant at this stage.

Dismissal with prejudice is particularly disfavored where the asserted defect can be corrected by amendment or where the movant's argument turns on facts within the movant's own control. MSC USA bears the burden of persuading the Presiding Officer that dismissal with prejudice is warranted now. It has not met that burden. Its motion depends on contested factual

issues concerning corporate identity, agency authority, billing responsibility, collection activity, and participation in related litigation.

ARGUMENT

I. MSC USA Has Not Carried Its Burden to Obtain Dismissal With Prejudice.

MSC USA's primary argument is that the Commission lacks personal jurisdiction because MSC USA is allegedly an agent of an ocean common carrier and not the carrier itself. Resp. Mem. at 2-3; Ex. H at GKL-EXH-002 to GKL-EXH-003. That argument assumes the central factual conclusion that discovery is needed to test: what role MSC USA actually played in the transaction and challenged conduct.

Complainant alleges and declares that MSC USA was the MSC entity that dealt directly with Complainant, handled or transmitted shipping documents, issued or relied upon invoices and account statements, demanded payment, pursued collection, and participated in related litigation. Ganiu Decl. paragraphs 2-10; Ex. A at GKL-EXA-001; Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001. These allegations are not peripheral. They go to the heart of Respondent's motion.

A party alleged to have generated or transmitted the challenged billing, pursued disputed charges, and participated in collection litigation cannot obtain dismissal with prejudice merely by invoking the label "agent" before discovery. Respondent's motion does not identify a fully developed evidentiary record showing that MSC USA was passive, disconnected, or uninvolved. It asks the Presiding Officer to accept MSC USA's characterization of its role while denying Complainant any opportunity to test that characterization.

That is not a proper basis for dismissal with prejudice. At most, MSC USA's motion raises factual questions concerning corporate identity, agency authority, billing control,

collection control, and litigation authority. Those questions should be resolved after discovery, or through a curative amendment, not through immediate termination of the proceeding.

II. MSC USA's Operational Conduct Defeats Its Passive-Agent Theory at This Stage.

The central factual issue is not whether some MSC document may describe MSC USA as an agent. The central issue is whether MSC USA participated in the specific conduct challenged by the Complaint. Complainant alleges and declares that it did. MSC USA was the MSC entity that Complainant dealt with in connection with the shipment, invoicing, account statements, payment demands, collection efforts, and related litigation. Ganiu Decl. paragraph 2.

That conduct matters. The Complaint challenges MSC-related billing, demurrage, detention, account-statement, and collection practices. If MSC USA handled or transmitted the documents, generated or transmitted invoices, demanded payment, pursued collection, and participated in related litigation, then MSC USA is not a stranger to the conduct. It is a direct participant in the factual events giving rise to the proceeding. Ex. A at GKL-EXA-001; Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001.

MSC USA should not be permitted to use corporate form and agency labels as both sword and shield. It cannot act as the operational MSC entity for invoicing, payment demands, collection, and litigation, while simultaneously claiming that it is too disconnected from the same conduct to answer before the Commission.

This point is especially important because Respondent seeks dismissal with prejudice. Even if the Presiding Officer eventually determines that an additional MSC carrier entity should be added, that conclusion would not establish that MSC USA had no role or that dismissal with prejudice is proper. The record should be developed to determine whether MSC USA acted

merely as a conduit, acted with delegated authority, acted on behalf of the carrier, or independently participated in the challenged practices.

At minimum, Complainant is entitled to discovery into: (1) which MSC entity generated the invoices and account statements; (2) which MSC entity controlled or approved the disputed charges; (3) which MSC entity directed collection; (4) which MSC entity authorized or participated in the New York litigation; (5) the nature of MSC USA's agency authority; (6) the identity of the vessel-operating carrier or contractual carrier; and (7) whether MSC USA acted as a mere conduit or as the operative MSC actor in the challenged practices.

III. Respondent's Older Agency Cases Do Not Control This Record.

Respondent relies on *Trane Company v. South African Marine Corp.* (N.Y.), 19 F.M.C. 375 (ALJ 1976), *Caterpillar Overseas S.A. v. South African Marine Corp.* (N.Y.), 19 F.M.C. 315 (ALJ 1976), and *Puerto Rico Maritime Shipping Authority and Puerto Rico Marine Management, Inc./Puerto Marine Operating Company, Inc.*, 21 F.M.C. 626 (FMC 1979), for the proposition that naming an agent instead of the ocean common carrier may be fatal. Resp. Mem. at 2-3; Ex. H at GKL-EXH-002 to GKL-EXH-003. Those authorities do not compel dismissal with prejudice here.

First, those cases involved the formal status of agents as agents, not a developed factual allegation that the U.S. affiliate or agent itself handled the shipping documentation, issued or relied upon invoices, demanded payment, pursued collection, and participated in related litigation concerning the charges. Here, the issue is not whether agents in the abstract are common carriers. The issue is whether MSC USA's actual conduct and authority can be adjudicated without discovery. Complainant's allegations and declaration say no. Ganiu Decl. paragraphs 2-10.

Second, the Puerto Rico Maritime statement that "agents of common carriers, as such, are not subject to the Shipping Act" does not answer the question presented here. The phrase "as such" matters. Complainant is not attempting to impose liability on a remote agent solely because it was named on a document. Complainant alleges that MSC USA was the operational entity that performed the billing, collection, and litigation conduct being challenged. Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001.

Third, Respondent's authorities do not establish that dismissal with prejudice is required where the respondent's own conduct and the identity of the proper MSC entity are disputed. At most, those authorities raise a question about whether another MSC carrier entity should be added or substituted. That is a curable pleading issue, not a basis to end the proceeding with prejudice before discovery.

Fourth, Respondent itself acknowledges more recent Commission proceedings involving agency entities and Commission jurisdiction. In its footnote discussion of *TCW, Inc. v. Evergreen Shipping Agency (America) Corp.*, Respondent criticizes a more recent jurisdictional approach and asks the Presiding Officer to prefer older authority. Resp. Mem. at 3 n.1; Ex. H at GKL-EXH-003. Respondent's need to distinguish or criticize more recent authority confirms that the issue is not as simple as MSC USA suggests and should not be resolved with prejudice on an undeveloped record.

The Presiding Officer need not finally decide at this stage whether MSC USA is ultimately liable. The present question is narrower: whether Complainant has alleged enough, and whether the record is developed enough, to terminate the proceeding with prejudice. The answer is no.

IV. The Shipping Act Provisions Preserve the Claims or, at Minimum, Support Amendment.

Respondent attempts to treat Counts II, III, and IV as pleading defects divorced from the statutory structure created by the Shipping Act and the Ocean Shipping Reform Act of 2022. That framing is too narrow. Even if the existing Complaint should be clarified, the underlying factual allegations concern charges, demurrage and detention practices, invoices, account statements, payment demands, and collection conduct. Those allegations fit within the statutory framework or, at minimum, are readily curable by amendment.

Section 41102(c) prohibits a common carrier, marine terminal operator, or ocean transportation intermediary from failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. 46 U.S.C. section 41102(c). Complainant alleges that the disputed charges and related practices were improperly assessed, inadequately supported, and improperly pursued in connection with the receipt, handling, storage, and delivery of cargo. That is a cognizable Shipping Act theory or, at minimum, a theory that can be pleaded more precisely by amendment.

Section 41104 also matters. OSRA amended section 41104 to address demurrage and detention charge practices and invoice requirements. Section 41104(a)(14) prohibits a common carrier from assessing a party for a charge that is inconsistent or does not comply with applicable provisions and regulations, including section 41102(c) and Part 545 or successor regulations. Section 41104(a)(15) addresses invoicing demurrage or detention charges unless the invoice includes required information, and section 41104(f) provides that failure to include required information eliminates the obligation of the charged party to pay the applicable charge. 46 U.S.C. section 41104(a)(14)-(15), (d), (f).

Those provisions make Respondent's Part 545 argument insufficient as a basis for dismissal with prejudice. Even if Part 545 is interpretive and does not create an independent cause of action standing alone, it is incorporated into the statutory reasonableness and invoice framework and expressly referenced in section 41104(a)(14)-(15). The appropriate remedy for any pleading imprecision is amendment, not dismissal with prejudice. Ex. B at GKL-EXB-001; Ex. H at GKL-EXH-004.

Section 41301 provides the procedural mechanism for filing a formal complaint alleging violation of the Shipping Act. Respondent argues that the separate charge-complaint burden provision in section 41310 applies only to charge complaints under that section. Resp. Mem. at 4; Ex. H at GKL-EXH-004. Even if that is correct, it does not extinguish the underlying formal complaint claims. At most, it means Count III should be clarified to allege that MSC failed to substantiate, justify, and lawfully invoice the charges as part of a section 41102(c) and section 41104(a)(14)-(15) theory rather than as a standalone burden-shifting cause of action.

V. If the Proper Carrier Must Be Added, Amendment Is the Proper Remedy.

MSC USA's motion is notable for what it does not offer. It does not provide a simple procedural path to correct the alleged defect. It does not consent to amendment. It does not identify a consented substitution of the entity it claims is the proper carrier. Instead, it seeks the harshest remedy: dismissal with prejudice.

That request is disproportionate. The FMC's own rules permit amendments and supplements to pleadings in the discretion of the Commission or presiding officer. 46 C.F.R. section 502.66. The rule also provides that the presiding officer may direct a party to state its case more fully and in more detail by amendment. *Id.* That is precisely the remedy appropriate

here if the Presiding Officer concludes that the current Complaint should identify another MSC entity or clarify statutory counts.

Federal Rule of Civil Procedure 15 supplies the same persuasive principle. Leave to amend should be freely given when justice requires, and amendments changing or correcting parties may relate back when the claim arises from the same conduct, transaction, or occurrence and the proposed party had notice and knew or should have known that the action would have been brought against it but for a mistake concerning identity. Fed. R. Civ. P. 15(a), (c). *Foman v. Davis* confirms that denial of leave generally requires reasons such as undue delay, bad faith, repeated failure to cure, undue prejudice, or futility. 371 U.S. 178, 182 (1962).

Those factors favor amendment here. This case is at the earliest stage. Respondent has not filed an answer. Discovery has not opened. No merits schedule has been implemented beyond the Initial Order. There is no unfair prejudice from amendment. MSC USA and any affiliated MSC carrier entity necessarily know the transaction, charges, invoices, collection efforts, and related litigation at issue. The proposed amendment would arise from the same transaction and occurrence alleged in the original Complaint.

Complainant is also proceeding pro se, and the alleged defect concerns information largely within Respondent's control: MSC's internal corporate structure, agency authority, and division of responsibility for billing, collection, and litigation. Accordingly, if the Presiding Officer concludes that the current pleading does not identify the proper MSC party with sufficient precision, Complainant respectfully requests leave to file a First Amended Complaint naming the appropriate MSC carrier entity, clarifying MSC USA's role, and tying each count to the relevant statutory provision.

VI. Limited Jurisdictional Discovery Is Appropriate Before Any Dismissal.

If the Presiding Officer has any doubt regarding MSC USA's role, the appropriate course is limited jurisdictional discovery. Respondent's motion turns on facts uniquely within MSC's possession. Complainant cannot be expected to know the internal allocation of authority among MSC USA, the vessel-operating carrier, and other affiliated MSC entities without discovery.

Federal courts, including the D.C. Circuit, recognize that jurisdictional discovery is appropriate when the plaintiff has alleged facts suggesting that discovery could supplement jurisdictional allegations. See *GTE New Media Services Inc. v. BellSouth Corp.*, 199 F.3d 1343, 1351-52 (D.C. Cir. 2000); *FC Investment Group LC v. IFX Markets, Ltd.*, 529 F.3d 1087, 1093-94 (D.C. Cir. 2008). Complainant is not requesting a fishing expedition. Complainant has identified specific facts and documents showing MSC USA's operational involvement, and requests narrowly targeted discovery concerning the same threshold facts Respondent placed at issue.

Limited discovery can be narrowly tailored and efficient. It should include documents and testimony sufficient to determine: (1) the identity of the contracting carrier; (2) the entity that issued, controlled, or transmitted the bills of lading; (3) the entity that generated, transmitted, or relied upon invoices and account statements; (4) the entity that directed collection; (5) the entity that authorized or participated in the New York litigation; (6) MSC USA's authority to act for the carrier; and (7) whether MSC USA participated in or controlled the challenged billing and collection practices.

This discovery would not unduly burden the merits schedule. It would clarify the threshold issue Respondent has raised and allow the Presiding Officer to decide the matter on a reliable record. It would also avoid the unfair result of dismissing a pro se complaint with prejudice based on corporate information that is largely controlled by the respondent.

VII. Counts II, III, and IV Should Not Be Dismissed With Prejudice.

A. Count II: Part 545 informs the Shipping Act analysis, and any pleading imprecision is curable.

MSC argues that 46 C.F.R. Part 545 is interpretive guidance and does not create an independent cause of action. Resp. Mem. at 3-4; Ex. H at GKL-EXH-003 to GKL-EXH-004. Complainant does not need to rely on Part 545 as an isolated standalone claim. The substance of the Complaint is that the challenged demurrage, detention, billing, account-statement, and collection practices were unreasonable or unlawful under the Shipping Act.

Part 545 remains relevant because it reflects the Commission's interpretation of demurrage and detention practices under the Shipping Act and because OSRA expressly references Part 545 or successor regulations in section 41104(a)(14)-(15). If Count II is deemed imprecise, it can be clarified by amendment to state expressly that the alleged facts support violations of the Shipping Act, including section 41102(c), section 41104(a)(14)-(15), and section 41104(f), as applicable to the documentary record.

Therefore, Count II should not be dismissed with prejudice. At most, Complainant should be granted leave to amend the count to more precisely state the statutory basis and the manner in which Part 545 informs the analysis.

B. Count III: Respondent's narrow reading of OSRA does not defeat the underlying Shipping Act claims.

MSC argues that the OSRA burden-of-proof provision applies only to a charge complaint procedure under 46 U.S.C. section 41310 and not to this complaint proceeding under 46 U.S.C. section 41301. Resp. Mem. at 4; Ex. H at GKL-EXH-004. Even if the Presiding Officer accepts that argument in whole or in part, it does not justify dismissal with prejudice.

The core of Count III is that MSC failed to justify the disputed charges and pursued them without adequate factual or legal basis. If the burden-shifting language is deemed to require a different procedural vehicle or clarification, that issue can be addressed by amendment. It does not eliminate the underlying Shipping Act claims concerning unreasonable charges, invoice deficiencies, billing practices, and collection conduct.

Accordingly, Count III should survive as pleaded or, alternatively, Complainant should be allowed to amend to conform the claim to the statutory framework identified by the Presiding Officer.

C. Count IV: Any statutory-citation defect is curable and does not warrant dismissal with prejudice.

MSC argues that Count IV, concerning improper reliance on account statements, fails to identify a specific statutory provision. Resp. Mem. at 5; Ex. H at GKL-EXH-005. To the extent the Presiding Officer agrees that Count IV should be pleaded with greater specificity, Complainant requests leave to amend.

The factual basis of Count IV is not vague. It concerns MSC's reliance on account statements, billing records, and collection documents to demand and pursue disputed charges. Ex. B at GKL-EXB-001; Ex. C at GKL-EXC-001; Ex. D at GKL-EXD-001. Those facts are central to the case. Any deficiency lies only in the precision of statutory citation, and that can be corrected without prejudice to Respondent.

Dismissal with prejudice would be especially inappropriate because Respondent already understands the factual theory of the claim. It knows which billing documents, account statements, and collection activity are at issue. The appropriate remedy, if any, is amendment under 46 C.F.R. section 502.66.

VIII. The Initial Order Supports Development of the Case Rather Than Immediate Termination With Prejudice.

The Office of Administrative Law Judges has already placed this matter into formal adjudication. The Initial Order contemplates an answer, discovery, mediation consultation, scheduling, preservation of evidence, and merits development. Initial Order at 1-4; Ex. E at GKL-EXE-001 to GKL-EXE-004. Those procedures exist so that the parties can test disputed facts and present the case on a developed record.

Respondent's motion seeks to bypass that process entirely based on a threshold characterization of MSC USA's corporate role. Where that characterization is disputed and where MSC USA's own conduct is central to the dispute, the Presiding Officer should not terminate the proceeding with prejudice before the ordinary case-management process has begun.

REQUEST FOR RELIEF

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer:

1. Deny Respondent's Motion to Dismiss in full;
2. Order Respondent to file an answer to the Complaint;
3. In the alternative, grant Complainant leave to file a First Amended Complaint adding or substituting the proper MSC carrier entity and clarifying the statutory bases for each count;
4. In the further alternative, permit limited jurisdictional discovery concerning MSC USA's role, authority, billing conduct, collection conduct, litigation conduct, and relationship with the carrier/principal;

5. Require Respondent, if it continues to contend that MSC USA is not the proper respondent, to identify the MSC entity it contends is the proper carrier or principal for the shipment and charges at issue; and
6. Grant such other and further relief as the Presiding Officer deems just and proper.

CONCLUSION

Respondent has not shown that dismissal with prejudice is warranted. The motion depends on disputed facts concerning MSC USA's role in the shipment, invoicing, payment demands, collection activity, and related litigation. Those facts should be developed through discovery, or any pleading issue should be cured by amendment. The Motion to Dismiss should be denied.

Respectfully submitted,

/s/ Kamordeen A. Ganiu
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Dated: July 4, 2026

**DECLARATION OF KAMORDEEN A. GANIU IN SUPPORT OF COMPLAINANT'S
OPPOSITION TO RESPONDENT'S MOTION TO DISMISS**

I, Kamordeen A. Ganiu, declare as follows:

1. I am the Complainant in this proceeding and the principal of Global Kings Logistics. I submit this Declaration based on my personal knowledge and my review of business records relating to the disputed MSC transaction, the invoices and account records, the payment demands, and the related New York litigation.
2. Attached or referenced as Exhibit A are true and correct copies of bills of lading, shipping documentation, or shipping records that MSC USA handled, transmitted, communicated, or relied upon in connection with the shipment at issue. Ex. A at GKL-EXA-001.
3. To the extent the face of any bill of lading identifies a different MSC carrier entity, MSC USA nevertheless handled, transmitted, communicated, or relied upon those documents in its dealings with Complainant. Ex. A at GKL-EXA-001.
4. Attached or referenced as Exhibit B are true and correct copies of MSC invoices and/or account statements relating to the disputed charges, including demurrage, detention, storage, administrative fees, or related charges. Ex. B at GKL-EXB-001.
5. Attached or referenced as Exhibit C are true and correct copies of MSC payment demands, collection communications, account demand materials, or related correspondence sent to or concerning Complainant. Ex. C at GKL-EXC-001.
6. Attached or referenced as Exhibit D are true and correct copies of New York litigation documents, pleadings, docket materials, or related collection-litigation documents concerning the same or related charges against Complainant. Ex. D at GKL-EXD-001.
7. Based on my dealings with MSC USA and my review of the documents identified above, MSC USA was the MSC entity that Complainant dealt with in connection with the shipment,

invoicing, account statements, payment demands, collection efforts, and related New York litigation.

- 8.** Complainant disputes MSC USA's attempt to characterize itself as a disconnected or passive agent. Based on the dealings and documents at issue, MSC USA acted as the operative MSC entity directly involved in the challenged transaction and dispute.
- 9.** Complainant requires discovery into MSC USA's relationship with the ocean carrier, its authority, its role in invoicing and account statements, its role in collection, and its role in the related litigation.
- 10.** If another MSC carrier entity must be named, Complainant seeks leave to amend rather than dismissal with prejudice.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on July 4, 2026.

/s/ Kamordeen A. Ganiu
Kamordeen A. Ganiu

**BEFORE THE
FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

GLOBAL KINGS LOGISTICS /
KAMORDEEN A. GANIU,

Complainant,

DOCKET NO. 26-09

v.

MEDITERRANEAN SHIPPING COMPANY
(USA) INC.,

Respondent.

**COMPLAINANT'S OPPOSITION TO RESPONDENT'S MOTION TO DISMISS,
ALTERNATIVE MOTION FOR LEAVE TO AMEND, AND REQUEST FOR LIMITED
JURISDICTIONAL DISCOVERY
[PROPOSED] ORDER DENYING RESPONDENT'S MOTION TO DISMISS OR, IN
THE ALTERNATIVE, GRANTING LEAVE TO AMEND OR LIMITED
JURISDICTIONAL DISCOVERY**

Upon consideration of Respondent Mediterranean Shipping Company (USA) Inc.'s Motion to Dismiss, Complainant's Opposition, the Declaration of Kamordeen A. Ganiu, the record in this proceeding, and all arguments presented, it is hereby ORDERED that Respondent's Motion to Dismiss is DENIED.

Respondent shall file an answer to the Complaint within the time directed by the Presiding Officer, and the parties shall proceed in accordance with the Initial Order and applicable Commission Rules.

In the alternative, to the extent the Presiding Officer determines that any claim requires clarification or that an additional MSC entity should be added or substituted, Complainant is GRANTED LEAVE to file a First Amended Complaint within a time set by the Presiding Officer.

In the further alternative, if the Presiding Officer determines that MSC USA's role or the identity of the proper MSC entity requires factual development, the parties shall conduct limited jurisdictional discovery on those issues according to a schedule set by the Presiding Officer.

SO ORDERED.

Dated: _____

Hon. Erin M. Wirth
Chief Administrative Law Judge

CERTIFICATE OF SERVICE

I certify that on July 4, 2026, a true and correct copy of the foregoing Complainant's Opposition to Respondent's Motion to Dismiss, Alternative Motion for Leave to Amend, and Request for Limited Jurisdictional Discovery, together with the Declaration of Kamordeen A. Ganiu and Proposed Order, was filed by electronic mail with the Secretary of the Federal Maritime Commission at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov, and served by electronic mail on counsel for Respondent Mediterranean Shipping Company (USA) Inc.:

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/s/ Kamordeen A. Ganiu
Kamordeen A. Ganiu